

		hearing addressing the status of the settlement administration, including the actual amounts paid to the Aggrieved Employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to <u>April 25, 2024 at 2:00 p.m.</u> in Department CX104 to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
8	Velasquez v. Team Blaze 2021-01187932	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs' motion for preliminary approval of a class action and PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? The Hyun Declaration (ROA 92, ¶ 13) states plaintiffs' counsel served some of the motion papers on the LWDA, but there is no proof of service and no evidence plaintiffs' counsel served, e.g., the declarations in support of the motion on the LWDA. Plaintiffs must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. 2. Plaintiffs' PAGA letter(s) to the LWDA must be submitted to the court. <u>As to the settlement:</u> 3. The class definition should be limited to employees in California consistent with the complaint and the definition of PAGA Group. 4. Paragraph III.42 of the settlement agreement seeks up to \$200,000 in attorneys' fees, while paragraph IV.47(f) seeks up to \$199,980 in attorneys' fees. 5. Paragraph III.41 requires payments to "the recipients designated herein" within 15 calendar days of the final payment, which appears to create ambiguity and/or

		conflict with paragraphs III.42, III.43, III.44, and VI.64 which set forth different payment schedules for the recipients of disbursements. 6. Why are the individual settlement payments to the PAGA Group Members calculated based on Workweeks (Settlement Agreement ¶ VI.61(a)) when PAGA penalties are assessed based on pay periods? 7. The definitions of “Released Claims” and “Released PAGA Claims” are overbroad and should be revised. The parties should review <i>Amaro v. Anaheim Arena Management LLC</i> (2021) 69 Cal.App.5th 521, 537-38 for its guidance regarding the permissible scope of the releases. The releases must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the complaint (and, for the PAGA claims, the notice letter(s) to the LWDA). Neither “Class Claims” nor “PAGA Claims” (Settlement Agreement ¶¶ VI.69, VI.70) is defined in the settlement agreement. In addition, the Released Claims include a release of claims for attorneys’ fees “relating in any way to those claims alleged and mentioned in the complaint(s) and/or PAGA Notice,” which appears to include plaintiffs’ counsel’s request for attorneys’ fees in this motion. At best, when read together with paragraph VI.69 of the settlement agreement (“except as to such rights or claims as may be created by this Settlement Agreement”), the settlement agreement is ambiguous regarding plaintiffs’ counsel’s request for attorneys’ fees in this motion. 8. Plaintiffs must provide further information regarding their valuation of the claims, including the size of the class upon which the valuations are based, the actual calculations for each claim, the discounts (if any) given on each claim, and the number or percentage of class members with arbitration agreements. 9. There is no explanation as to why the allocation for PAGA penalties is fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future violations, and maximize enforcement of state labor laws. <i>See Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. 10. Why was a sampling of 8.5% of the putative class (Hyun Decl. (ROA 92) ¶ 8) sufficient to extrapolate to the entire putative class? In addition, how was the sample set selected, e.g., randomly by plaintiffs and/or plaintiffs’ expert, randomly by defendants, from one store or across all stores? What is the margin of error for the sampling?
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		<u>As to the class notice:</u> 22. The class notice should be revised consistent with the above. 23. The applicable court department should be updated throughout the notice. In section 8, the parties should propose a date and time for the final approval hearing. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. 24. The title of the notice, first paragraph, and throughout the notice should refer to the PAGA action as well as the class action. 25. Terms defined in the settlement agreement should be used in the notice. In addition, the terms used in the settlement agreement and the notice should be consistent. E.g., the settlement agreement refers to the aggrieved employees as PAGA Group Members, but the notice uses the term Aggrieved Employees. 26. In the first paragraph, "(Class Members)" should be moved to after "the Class Period (September 26, 2018 to [date])." 27. The box on page 3 of the notice and section 4 paragraph 2 state that the individual PAGA payments will be calculated based on pay periods. These statements are inconsistent with paragraph VI.61(a) of the settlement agreement which states that the individual settlement payments to the PAGA Group Members will be calculated based on Workweeks. 28. Section 3 paragraph 5 of the notice should be revised to inform recipients that checks will be valid for 180 days from the date of issuance rather than until the "void date." 29. Section 3 paragraph 6 states that the settlement administrator will resolve workweek disputes. Section 4 paragraph 8 states that the settlement administrator will resolve disputes and that its decisions are "final" and cannot be appealed or challenged. The latter language should be removed, and both sections should be revised to state that the court may review any decision made by counsel or the settlement administrator regarding a claim dispute. 30. The notice and exclusion form should advise class members who opt out that they will still be bound by the release of the PAGA claims.
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		<u>As to the proposed order:</u> 31. The proposed order should be revised consistent with the above. 32. The attorney information on the caption page should be removed and the judge and department updated throughout the document. Paragraph 11 should include the court address. 33. The settlement agreement and the class notice packet (including the certified Spanish-language translation, see Settlement Agreement ¶ I.27) should be attached to the proposed order as exhibits. 34. At page 1 line 1, "Plaintiff" should be "Plaintiffs." The hearing date at page 1 line 4 should be updated. 35. The last sentence in paragraph 1 (beginning "The Settlement Agreement . . .") should be deleted as it is duplicative of paragraph 10. 36. In paragraph 7, insert "conditionally" between "Court" and "appoints." 37. In paragraph 8, insert "preliminarily" between "hereby" and "approves." 38. Paragraph 11 should include a proposed final approval hearing date. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. 39. The proposed order should include the deadlines for class data to be provided to the settlement administrator and for the settlement administrator to send the notices to the class. 40. Paragraph 14 should state that PAGA Group Members and Class Members who are PAGA Group Members cannot opt out of the PAGA settlement. Paragraph 14 should state the deadline for requests for exclusion and the deadline for requests for exclusion for remailed notices. 41. Paragraph 15 should include the deadline for remailed notices. 42. The method and deadlines for submitting disputes should be included in the proposed order. 43. Paragraph 16 should require the motion for final approval to be served on the LWDA. 44. Paragraph 17, which states the releases take effect on the Effective Date, contradicts paragraphs VI.69 and VI.70 of the settlement agreement. The court will not require the
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		Class Members and PAGA Group Members to release their claims until defendants have fully funded the settlement. 45. The definition of the PAGA Period should be included in the proposed order. The hearing on plaintiffs' motion for preliminary approval is continued to <u>April 25, 2024 at 2:00 p.m.</u> in Department CX104 to enable the parties to address and respond to the above issues. A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service. <u>Status Conference</u> The court has reviewed the parties' joint status conference report filed December 29, 2023 (ROA 110), and based thereon and on the court's concurrent ruling on plaintiffs' motion for preliminary approval of a class action and PAGA settlement, continues the January 11, 2024 status conference to April 25, 2024 at 2:00 p.m. in Department CX104. The parties are ordered to file a joint status conference report at least five court days before the hearing. Clerk to give notice.
9	Clark v. Windsail Capital Group, LLC 2021-01191735	<u>Attorney Gabrielle Muniz's Motion to Appear Pro Hac Vice</u> Attorney Gabrielle Muniz moves to appear pro hac vice for defendants and cross-complainants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand, and Matthew T. O'Rourke. For the following reasons, the unopposed motion is granted. The application is verified and/or supported by a declaration(s). It properly sets forth the applicant's residence and office addresses and California counsel's contact information. It states the applicant's courts and dates of admission and attests to her good standing. The application states there has been one prior application in California state court in the last two years. Attorney Ziemianek attests that the motion has been served on the State Bar of California at its San